Environment was neither an international nor a national issue when the Indian Constitution was written. Consequently, it is not mentioned as a subject in any of the three lists of the Seventh Schedule allocating business of the government to the Union, the states or as Concurrent Subjects. The environment became an international concern and, thereafter, a national concern only in the 1970s. The government tagged the environment with forests (as if the environment were an adjunct of forests) and established the Ministry of Environment and Forests (MOEF). Later, ‘Climate Change’ was formally added to MOEF and it became MOEF&CC.

Forests do act as carbon sinks and are a good way to convert atmospheric carbon in the woods. However, they are not responsible for or directly concerned with the pollution of air, water and non-forest lands. Diversion and increase of forest lands is one of the many ways to manage CO_2. However, managing pollution of air, water and non-forest lands requires a much broader sweep of action that is more related to agriculture, industrialization and urbanization. The environmental agenda is wide—forests constitute just one set of interventions as part of that agenda.

The state of environmental pollution in India has reached gargantuan scales despite MOEF&CC having been entrusted with the most sweeping authority and powers for the past thirty-five years. The ministry has adopted a gatekeeper approach for most economic activities involving large investments. It is necessary to obtain the consent of the ministry or its authorized delegates before any serious industry or infrastructure can be started in the country. It is tortuous to go through the processes, which consume years before consent is granted—that, too, usually with unimplementable conditions. There is very little connect between the process of obtaining consent and the significance of the impact of such consent on the state of air, water and land pollution.

The basic orientation and purpose of the ministry needs to be changed. The MOEF&CC does not have separate departments for handling the issues